46. The law does not require that the applicants know for certain their claim will succeed, know for certain the elements of the claims can be made out, nor even the likelihood of success.[30] Rather, the date of discoverability is the date that the claimant knew of or ought to have discovered the material facts upon which a "plausible inference of liability on the defendant's part can be drawn."[31] For there to be a plausible inference that the AMF Respondents were liable for the damages claimed, the applicants must have known of or should have known of facts supporting that an entity other than 176 NSL owned some or all of 176 NSL's assets. We submit that the evidence clearly shows that the applicants were aware of all necessary material facts prior to February 7, 2018.

47. The applicants, through their counsel and insurance adjuster, were clearly aware of the transaction between 176 NSL and Arichat Metal involving corporate name changes, reorganization, and the sale of assets by December 2016. They were aware that Mr. Boucher and Mr. Boudreau were previously business partners regarding both 176 NSL and Arichat Metal, and that by 2016, Mr. Boucher was no longer involved with Arichat Metal. The applicants' experienced legal counsel believed that the company her clients were suing in the 2010 Proceeding was "judgment proof", meaning it had no assets from which to recover judgment, and from the context of the 2016 Email, she believed those assets belonged to Arichat Metal. This is why she was searching registries for both companies.

48. The applicants therefore had ample material facts before them prior to February 7, 2018 from which to draw the plausible inference that these companies may be intertwined, that the transaction may not have been at arm's-length, and that Mr. Boucher and Mr. Boudreau may be personally liable for any damages resulting from the 2010 Action which they now say amounts to corporate fraud that justifies piercing the corporate veil. Not only were the applicants aware of material facts to support the plausible inference of liability on the part of Arichat Metal; the applicants were aware of material facts which would support the plausible inference that Mr. Boudreau may be personally liable as well.

49. The present case can be distinguished from the case of *Rona Inc v Rockhard Construction Limited et al*, 2020 NSSC 374 ("*Rona*"). In that case, the plaintiff sought to amend its pleadings and join three new parties, two companies and an individual, to the action. The plaintiff said that after discovering the principal of

---

30 *Smith v Parkland Investments Ltd*, 2019 NSSC 74, para 64.
31 *Grant*, para 3.